

24CV00155 Motion: Set Aside Dismissal re To Vacate Dismissal and Enter Judgment

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-06-29

Motion: Motion: Set Aside Dismissal re To Vacate Dismissal and Enter Judgment

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Tentative Ruling: Motion: Set Aside Dismissal re To Vacate Dismissal and Enter Judgment

Case Number

24CV00155

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 06/29/2026 - 10:00

Nature of Proceedings

Motion: Set Aside Dismissal re To Vacate Dismissal and Enter Judgment

Tentative Ruling

On March 16, 2026, plaintiff Wells Fargo Bank, N.A., filed this motion to vacate the dismissal entered in this matter on January 27, 2025, pursuant to a written stipulation between the parties entered in July 2024. The motion is accompanied by a declaration showing that defendant Miles Benenati is in default in making payments pursuant to that stipulation. No opposition or other response has been filed to the motion.

The motion to set aside dismissal and to enter judgment pursuant to Code of Civil Procedure section 664.6 is granted. The dismissal entered on January 27, 2025, is ordered vacated. The court will enter judgment in favor of plaintiff and against defendant as set forth in the motion in the total amount of \$3,954.00, inclusive of costs.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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